

FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, June 27, 2022. Contents noted. Recommend approval of the negotiated plea agreement of charges and specifications in DADS No. 2021-23950, CCRB No. 201907401, against Sergeant Frederick Manney, Tax Registry No. 949938. The case was conferenced on June 14, 2022, before Assistant Deputy Commissioner of Trials – Paul Gamble, who approved the negotiated penalty of a Reprimand, after a guilty plea.

Jonathan Darche

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board





DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-23950
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, MANNEY	FIRST FREDERICK	M.I.	COMMAND 090 PRECINCT
SHIELD NO. 4797	TAX REGISTRY NO. 949938	SOCIAL SECURITY NO.		DATE APPOINTED 07/06/2011

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Frederick Manney, on or about August 18, 2019, at approximately 1720 hours, while assigned to 090 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) in Brooklyn without sufficient legal authority.	PLEADED GUILTY	REPRIMAND .00 - It is recommended that the Respondent be Reprimanded.
2. Sergeant Frederick Manney, on or about August 18, 2019, at approximately 1720 hours, while assigned to 090 PCT and on duty, inside § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) in Brooklyn without sufficient legal authority.	PLEADED GUILTY	

Edward A. Cab 01/18/23
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Gulf 5/4/23
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 21, 2023

Re: CCRB Case No. 201903406 (Incident Date: April 11, 2019) involving Lieutenant Jonathan Rivera, Tax No. 949550 (DADS No. 2021-23395) / CCRB Case No. 201901922 (Incident Date: March 4, 2019) involving Police Officer Ariel Eusebio, Tax No. 958565 (DADS No. 2020-22200) / CCRB Case No. 201800538 (Incident Date: January 17, 2018) involving Detective Tomor Berisha, Tax No. 953678 (DADS No. 2019-20140) and Detective John Echevarria, Tax No. 953836 (DADS No. 2019-20141) / CCRB Case No. 201907401 (Incident Date: August 18, 2019) involving Sergeant Frederick Manney, Tax No. 949938 (DADS No. 2021-23950)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendations of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matters involving the above officers. It was determined that the CCRB recommendations of "Training" are appropriate in this matter. However, while formalized training will properly address the substantiated allegations and is appropriate under the Disciplinary System Penalty Guidelines, the imposition of charges and specifications are not warranted in cases where an appropriate penalty is formalized training.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in these matters and Police Officer Eusebio, Detectives Berisha and Echevarria, Sergeant Manney, and Lieutenant Rivera will receive the formalized training appropriate in connection with their respective substantiated allegations.

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.
Matthew Schieffer, Esq.
Michael Martinez, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

April 28, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 201903406 (Incident Date: April 11, 2019) involving Lieutenant Jonathan Rivera, Tax No. 949550 (DADS No. 2021-23395) I CCRB Case No. 201901922 (Incident Date: March 4, 2019) involving Police Officer Ariel Eusebio, Tax No. 958565 (DADS No. 2020-22200) / CCRB Case No. 201800538 (Incident Date: January 17, 2018) involving Detective Tomor Berisha, Tax No. 953678 (DADS No. 2019-20140) and Detective John Echevarria, Tax No. 953836 (DADS No. 2019-20141) I CCRB Case No. 201907401 (Incident Date: August 18, 2019) involving Sergeant Frederick Manney, Tax No. 949938 (DADS No. 2021-23950)

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated April 21, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in these matters. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Soto’s notification.

Deputy Chief Soto stated that after reviewing the recommendation of CCRB, you determined that the recommended penalty of “Training” was appropriate but did not require the imposition of charges & specifications against all five respondents.

At the time this plea was agreed to, the CCRB was not resolving APU cases for disciplines other than charges. Today, the CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If the CCRB were to resolve these cases today, and the respondents were to accept responsibility for the misconduct, the CCRB would have moved to dismiss the charges itself.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', is positioned above a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

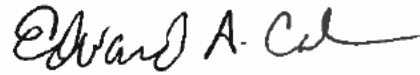
Cc: John Tynan, Esq.
Matthew Schieffer, Esq.
Michael Martinez, Esq.

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, January 18, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23950 against Sergeant Frederick Manney, Tax #949938, for a Reprimand. Assistant Deputy Commissioner, Trials Paul Gamble, reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I do not concur.

Charges and Specifications is an egregious penalty in regard to this case. It is disingenuous to recommend a Reprimand while not also recommending the dismissal of the Charges and Specifications. The Respondent's record should not be tarnished with Charges and Specifications, when CCRB is recommending a Reprimand (Training) and he is accepting it. Based on the totality of the circumstances and fairness in the Disciplinary process, I recommend the Dismissal of Charges, Specifications, and Training in Administrative Guide Procedure No. 304-06 (Prohibited Conduct/Abuse of Authority- Entry of Premise).

RECOMMEND APPROVAL.



Edward A. Caban

FIRST DEPUTY COMMISSIONER

EAC/rn

APPROVED



MAY 04 2023
KEECHANT L. SEWELL
POLICE COMMISSIONER